



THE CRIMINAL LAW AMENDMENT ACT, 1932



CONTENTS

PREAMBLE

.

1	Short title, extent, duration and commencement
2 TO 4	[Repealed.]
5	Dissemination of contents of prescribed document
6	[Repealed.]
7	Molesting a person to prejudice of employment of business
8	Power to order parent or guardian to pay fine imposed on young person
9	Procedure in offences under the Act
10	Power of Provincial Government to make certain offences cognizable and non-bailable

11 TO 14 [Repealed.]

15	[Repealed.]
16	[Repealed.]
17	[Repealed.]
18	[Omitted.]
19	[Omitted.]
20	[Omitted.]

THE CRIMINAL LAW AMENDMENT ACT, 1932

¹ACT No. XXIII OF 1932

[19th December, 1932]

An Act to supplement the Criminal Law

WHEREAS it is expedient to supplement the Criminal Law and to that end to amend the Press (Emergency Powers) Act, 1931 (XXIII of 1931), and further to amend ²* the Criminal Law Amendment Act, 1908 (XIV of 1908), for the purposes hereinafter appearing;

It is hereby enacted as follows :—

1. Short title, extent, duration and commencement.—(1) This Act may be called the Criminal Law Amendment Act, 1932.

³[(2) It extends to the whole of Pakistan].

4* * * * *

(4) The whole of the Act except ⁵* * * section 7 shall come into force a once, and the ⁶[Provincial Government] may, by notifications ⁷in the ⁸[official Gazette] direct that ⁹* * * section 7 shall come into force in any area on such date as may be specified in the notification.

2 to 4. [*Dissuasion from enlistment. Tampering with public servants. Boycotting a public servant.*] Rep. by the Criminal Law Amendment Act, 1935, s. 2.

5. Dissemination of contents of prescribed document.—(1) Whoever publishes, circulates or repeats in public any passage from a newspaper, book or other document copies whereof have been declared to be forfeited to ¹⁰[Government] under any law for the time being in force, shall be punished with imprisonment for a term which may extend to six months, or with fine, or with both.

¹ For Statement of Objects and Reasons see Gazette of India, 1932, Pt. V, p. 206 ; for Report of Select Committee, see *ibid.*, 1932, Pt. V, p. 225. The Act has been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P.; and extended to the Excluded Area of Upper Tanawal (N.W.F.P.) other than Phulera with effect from such date and subject to such modifications as may be notified see N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950. It has also been extended to the Leased Areas of Baluchistan, see the Leased Areas (Laws) Order, 1950 (G. G. O. 3 of 1950) ; and applied in the Federated Areas of Baluchistan, see Gazette of India, 1937, Pt. I, p. 1499.

² The word “temporarily” omitted by the Criminal Law Amendment Act, 1935, s. 3.

³ Subs. by the Central Laws (Statue Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955), for the original sub-section (2), as amended by A. O., 1949, and the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 8.

⁴ Sub-section (3) rep. by the Criminal Law Amendment Act, 1935, s. 2.

⁵ The words and figure “section 4 and,” rep. *ibid.*, s. 4.

⁶ Subs. by A. O., 1937, for “L. G.”.

⁷ S. 7 was brought into force in—
(i) Lahore District from the 31st December, 1932 ; see Punjab Gazette, Extraordinary, 1932, p. 163 ;

⁸ Subs. by A. O., 1937, for “local official Gazette”.

⁹ The words and figures “section 4 or” rep. by the Criminal Law Amendment Act, 1935, s. 4.

¹⁰ Subs. by A. O., 1961, Art. 2, for “His Majesty” (with effect from the 23rd March, 1956).

(2) No Court shall take cognizance of an offence punishable under this section unless the ¹[Provincial Government] has certified that the passage published, circulated or repeated contains, in the opinion of the ¹[Provincial Government], seditious or other matter of the nature referred to in sub-section (1) of section 99A of the Code of Criminal Procedure, 1898 (V of 1898), or sub-section (1) of section 4 of the Press (Emergency Powers) Act, 1931 (XXIII of 1931).

6. [*Dissemination of false rumours.*] Rep. by the Criminal Law Amendment Act, 1935, s. 2.

7. Molesting a person to prejudice of employment of business.—(1) Whoever-

- (a) with intent to cause any person to abstain from doing or to do any act which such person has a right to do or to abstain from doing, obstructs or uses violence to or intimidates such person or any member of his family or person in his employ, or loiters at or near a place where such person or member or employed person resides or works or carries on business or happens to be, or persistently follows him from place to place, or interferes with any property owned or used by him or deprives him of or hinders him in the use thereof, or
- (b) loiters or does any similar act at or near the place where a person carries on business, in such a way and with intent that any person may thereby be deterred from entering or approaching or dealing at such place,

shall be punished with imprisonment for a term which may extend to six months, or with fine which may extend to five hundred rupees, or with both.

Explanation.— Encouragement of indigenous industries or advocacy of temperance, without the commission of any of the acts prohibited by this section is not an offence under this section.

(2) No Court shall take cognizance of an offence punishable under this section except upon a report in writing of facts which constitute such offence made by a police officer not below the rank of officer in charge of a police station.

8. [*Power to order parent or guardian to pay fine imposed on young person.*] Rep. by the Criminal Law Amendment Act, 1935, s. 2.

9. Procedure in offences under the Act. Notwithstanding anything contained in the Code of Criminal Procedure, 1898 (V of 1898),—

- (i) no Court inferior to that of a ²* * * Magistrate of the first class shall try any offence under this Act;
- (ii) an offence punishable under section ³* *, 5, ³* or 7 shall be cognizable by the police;

¹ Subs. by A. O., 1937, for "L. G."

² The words "Presidency Magistrate or" rep. by the Federal Laws (Revision and Declaration) Act, 1951, (26 of 1951), s. 3 and 2nd Sch.

³ The figures "2", "3" and "6" omitted by the Criminal Law Amendment Act, 1935, s. 5.

and

(iv) an offence punishable under section 7 shall be non-bailable.

10. Power of Provincial Government to make certain offences cognizable and non-bailable.—(1) The ²[Provincial Government] may, by notification in the ³[official Gazette] declare that any offence punishable under section 186, 188, 189, 190, 228, 295A, 298, 505, 506 or 507 of the Pakistan Penal Code (XLV of 1860), when committed in any area specified in the notification shall, notwithstanding anything contained in the Code of Criminal Procedure, 1898 (V of 1898), be cognizable, and thereupon the Code of Criminal Procedure 1898 (V of 1898), shall, while such notification remains in force, be deemed to be amended accordingly.

(2) The ²[Provincial Government] may, in like manner and subject to the like conditions, and with the like effect, declare that an offence punishable under section 188 or section 506 of the Pakistan Penal Code, 1860 (XLV of 1860) shall be non-bailable.

11 to 14. *[Amendment of s. 16, Act XIV of 1908. Amendment of s. 17, Act XIV of 1908. Insertion of new ss. 17A to 17F in Act XIV of 1908. Amendment of title and preamble of Act XXIII of 1931]. Rep. by the Repealing Act, 1938 (I of 1938), s. 2 and Sch.*

15. *[Amendment of s. 1, Act XXIII of 1931.] Rep. by the Criminal Law Amendment Act, 1935, s. 2.*

16. *[Amendment of s. 4, Act XXIII of 1931.] Rep. by the Repealing Act, 1938 (I of 1938), s. 2 and Schedule.*

17. *[Cessation of effect of s. 62, Ordinance X of 1932.] Rep. by the Criminal Law Amendment Act, 1935, s. 2.*

18. *[Adoption and Continuance of action taken under Ordinance X of 1932.] Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch., II.*

19. *[Adoption of Continuance of action taken under Act XXIII of 1931 as amended by Ordinance X of 1932.] Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981, (XXVII of 1981), s. 3 and Sch., II.*

20. *[Trial of, and Completion of trials of, offences against Ordinance X of 1932]. Rep. by the Criminal Law Amendment Act, 1935, s. 2.*

¹ Cl. (iii) rep. *ibid.*

² Subs. by A. O., 1937 for "L. G."

³ Subs. *ibid.*, for "local official Gazette".

